

25STLC05378 25STLC05378

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STLC05378 Hearing Date: September 28, 2026 Dept: 26

TENTATIVE RULING:

Defendant Lourvey Sahana Bourdan's Motion to Quash

Subpoena for Production of Personal and Business Financial Records is granted.

Analysis:

On July 14,

2025, Plaintiff Pacific Rejuvenation Medical ("Plaintiff") filed this action against Defendant Lourvey Sahana Bourdan ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered Defendant's default on September 9, 2025.

On December

31, 2025, the Court granted Defendant's first Motion to Quash Subpoena; on February 5, 2026, the Court granted Defendant's Motion to Vacate Entry of Default. (Minute Orders, 12/31/25 and 02/05/26.) The Court also granted Defendant's second Motion to Quash Subpoena on March 9, 2026. (Minute Order, 03/09/26.) Defendant filed an Answer to the Complaint on March 12, 2026; on April 16, 2026, Plaintiff added House on a Hill Entertainment LLC as a doe defendant. Following its failure to respond to the action, the Court entered its default on June 4, 2026. (Minute Order, 03/12/26.) The Court denied Plaintiff's Motion to Strike Defendant's Answer on July 21, 2026. (Minute Orders, 03/12/26 and 07/21/26.)

Defendant

filed and served the instant Motion to Quash Subpoena for Production of Personal and Business Financial Records on June 22, 2026. Defendant filed and served a supplemental declaration on June 23, 2026. No opposition has been

filed to date.

Discussion

Defendant brings the instant Motion pursuant to Code of Civil Procedure section 1987.1, subdivision (a), on the basis that the subpoena issued to Wells Fargo is defective for lack of proper notice upon Defendant, seeks highly confidential information protected by the right of privacy, is premature, and is procedurally improper. Section 1987.1 allows a party, witness, consumer, or employee to move for “an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a).) The Motion attaches copies of the letters sent to Defendant by Wells Fargo on June 10, 2026 and June 15, 2025, each of which refers to a “Legal Order to release Wells Fargo records” it received from Plaintiff. (Motion, Exh. A; Bourdan Decl., Exh. A.) Both letters indicate a production deadline of July 7, 2026. (Ibid.)

Plaintiff contends that she did not receive notice of the subpoena as required by Code of Civil Procedure section 1985.3, which requires service “[t]o the consumer personally, or at his or her last known address, or in accordance with Chapter 5 (commencing with Section 1010) of Title 14 of Part 3, or, if he or she is a party, to his or her attorney of record.” (Code Civ. Proc., § 1985.3, subd. (b)(1).) The Court finds that Plaintiff’s failure to give Defendant any notice of the subpoena as required by statute is grounds to quash it.

To the extent that Defendant also argues the subpoena should be quashed because it seeks highly confidential financial information to which Plaintiff has not demonstrated a compelling need, the Motion cites no authority beyond the “constitutional right to privacy.” (Motion, p. 2:11-17.) The California Constitution does broadly include privacy as an inalienable right in Article I, section 1, but does not speak to how that right is impacted by subpoenas in civil litigation. The Court, therefore, does not find this unsupported argument a basis to quash the subpoena. The Motion also argues that the subpoena is premature and procedurally improper because service of process on Defendant’s LLC is actively disputed. This argument also lacks any supporting citation to either evidence or legal authority. (Id. at p. 2:19-26.) If Defendant is referring to service upon House on a Hill Entertainment LLC, the Court has already entered its default and there is no

pending challenge to that default. Finally, to the extent that Defendant argues the subpoena is overbroad and lacks relevance, it is unclear how Defendant can know what categories of information are sought without having been served with the subpoena. Nor can the Court evaluate the breadth and relevance of the subpoena without seeing a copy of it.

Based on the foregoing, the request to quash the subpoena issued to Wells Fargo by Plaintiff is granted for lack of proper notice to Defendant as required by Code of Civil Procedure section 1985.3.

Conclusion

Defendant Lourvey Sahana Bourdan's Motion to Quash Subpoena for Production of Personal and Business Financial Records is granted.

Judicial Assistant to give notice.